

TENTATIVE RULING

CINDY MELCHOR AND MARTHA MELCHOR COSIO vs. VOLKSWAGEN GROUP OF AMERICA, INC. (25CV001591)

Plaintiffs Cindy Melchor and Martha Melchor Cosio move for an award of attorneys' fees following Plaintiffs' acceptance of Defendant's settlement offer pursuant to Code of Civil Procedure section 998 to resolve this matter for payment of a set sum, plus statutory attorneys' fees, costs, and expenses to be determined by motion.

By this motion, Plaintiffs seek an award of attorneys' fees in the total amount of \$14,650.50, consisting of the following: (1) \$9,940.00 in attorneys' fees on the underlying case; (2) a 1.25 multiplier enhancement on the attorney fees (\$2,498.50); (3) an additional \$1,422.001 in attorneys' fees for Plaintiffs' counsels' billed time to review Defendant's Opposition and draft the Reply; and (4) \$790 in anticipated attorneys' fees to prepare for and attend the hearing on this Motion.

The attorney time sought by Plaintiffs on the motion is reasonable for the work performed and no deductions are made. The court declines to award a multiplier. The court adjusts the hourly rates awarded to \$450.00 per hour for partner level attorneys and \$350 per hour for associate level attorneys. These rates are consistent with the prevailing rates in the community for similar work.

The Motion is GRANTED, and Plaintiff is awarded fees in the total amount of \$10,745.00.

Plaintiffs are to prepare the court's order consistent with the tentative ruling.

NOTE RE: TENTATIVE RULING

This tentative ruling becomes the court's order, and no hearing shall be held unless one of the parties contests it by complying with Rule 3.1308 of the California Rules of Court and Monterey County Local Rule 7.9.

Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, NO ORAL ARGUMENT WILL BE PERMITTED, AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE HEARING VACATED.

You must notify the court by emailing TentativeRulings@monterey.courts.ca.gov or by telephoning the Calendar Department at (831) 647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.